

The National Cadet Corps Rules, 1948

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Union of India - Act

The National Cadet Corps Rules, 1948

UNION OF INDIA

India

The National Cadet Corps Rules, 1948

Rule THE-NATIONAL-CADET-CORPS-RULES-1948 of 1948

Published on 19 February 1949

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The National Cadet Corps Rules, 1948

Published vide Notification Gazette of India, 1949, Part 1, Section 3, Page 239.

1812.

No. 289, dated the 19th February, 1949. - In exercise of the powers conferred by section 13 of the National Cadet Corps Act, 1948 (XXXI of 1948), the Central Government is pleased to make the following :-

Preliminary 1. Short title and extent.

(1)

These rule may be called the National Cadet Corps Rules, 1948.

(2)

They extend to the whole of India and apply to all persons enrolled of appointed under the Act, wherever they may be.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context :-

(a)

"the Act" means the National Cadet Corps Act, 1948 (XXXI of 1948);

(b)

"State Government" in relation to a Part C State, means the Chief Commissioner of the State;

(c)

"Director of Public Instruction" includes the Director of Education;

(d)

"form" means a form set out in Schedule I;

(e)

"schedule" means a schedule appended to these rules;

(f)

"section" means a section of the Act;

(g)

"training year" means a period of twelve months beginning on the first day of April and ending on the thirty-first day of March;

(h)

the expressions "Commanding Officer" and "Officer Commanding the unit" mean the Officer of the Armed Forces who is in command of the unit of the Senior Division of the Corps;

(i)

the expression "College" includes any teaching institution, within the meaning of the term "university";

(j)

the expression "Headmaster" means the Head of a "school"

(k)

the expression "cadet" means any student enrolled under section 6 of the Act;

(l)

the expression "university" and "school" have the meaning respectively assigned to them by the Act;

(m)

["National Cadet Corps Directorate" means a group of States which has been placed under the charge of an officer of the Armed Forces working directly under the Director General National Cadet Corps;

[Inserted by S.R.O. 83, dated 19.02.1955, Part II, Section 4, Page 45.]

(n)

"Director National Cadet Corps" means any officer of the Armed Forces who is placed in charge of a National Cadet Corps Directorate and commands all the units of the National Cadet corps.]

Part I ? Raising of A Unit

3.

Conditions for raising a unit of the Senior Division.

- A unit or part thereof of the Senior Division may be raised in a college subject to the following conditions :-

(a)

The college shall provide from among the members of its staff officers for the unit at the scale of :-

2. officers per Naval Unit

5.

Officers per Infantry company

3. officers per Armoured Corps Unit

2. officers per Artillery, Engineer, Signal, Medical and E.M.E., unit.

2. officers per Air Force unit

(b)

The college shall give an undertaking that it can enrol and maintain upto strength the unit or part thereof which may be allotted to it.

(c)

The college shall provide for the unit or part thereof which may be allotted to it a store room for storage of clothing and equipment and provide accommodation for an office.

(d)

The college shall arrange for the use of a suitable parade ground.

(e)

The college shall provide a suitable short range or arrange to obtain the use of such a short range.

[****]

[Proviso omitted by S.R.O. 283, dated 10th September, 1959, Part II, Section 4, Page 134.]

Provided [***]

[The word "further" omitted, by S.R.O. 283, dated 10th September, 1959, Part II, Section 4, Page 134.]

that the Central Government may, in any case, on the recommendation of the State Government, relax wholly or in part, the provision of clauses (c), (d) and (e) if it is satisfied that requisite facilities are provided by colleges located in the same place.

4.

Condition for raising a unit of the Junior Division.

- A unit or part thereof the Junior Division may be raised in a school subject to the following conditions :-

(a)

The school shall provide from among the members of its staff officers at the scale of 1 officer per sub-unit of 30 cadets.

(b)

The school shall give an undertaking that it can enroll and maintain upto strength the unit or part thereof which may be allotted to it.

(c)

The school shall provide for the unit or part thereof which may be allotted to it a store room for the storage of clothing and equipment.

(d)

The school shall provide a suitable miniature rifle range or arrange to obtain the use of such a miniature rifle range.

(e)

The school shall be in a position to supplement from its own funds the financial grants made by the State Government for the unit or part thereof, which may be allotted to it.

Provided that the State Government may, in any case, relax wholly or in part of the provisions of clause (e), or if it is satisfied that the requisite facilities are provided by schools located in the same place, the provisions of clauses (c) and (d).

Part II ? Enrolment

5. Qualifications for enrolment in the Senior Division.

- No student of the male sex of any University offering himself for enrolment in the Senior Division shall be eligible for enrolment :-

(a)

unless he is of good character;

(aa)

[unless he is a citizen of India or a subject of Nepal;

[Inserted by S.R.O. 60, dated 3rd June, 1950, Part II, Section 4, Page 50.]

Provided that the Central Government may, in any suitable case, relax the provisions of this clause;]

(b)

unless he is under the age of 24 years;

Provided that the Central Government may, in the case of any student or class of student relax the provisions of this clause.

(c)

unless he is on the roll of the College which is providing the unit or part thereof;

(d)

unless he satisfies such standard of physical fitness in height, chest measurement and other respects as may be specified by the Ministry of Defence, Government of India;

(e)

if he has at any time been convicted of an offence involving moral turpitude and a sentence other than one of fine or of imprisonment in default of payment of fine has been passed in respect of such offence, such sentence not having been subsequently reversed or remitted or the offence pardoned;

Provided that a person who is ineligible under this clause shall be eligible for enrolment if he produces a certificate from the State Government that he is a fit person to be enrolled;

(f)

if he has been dismissed from the University Corps of the Indian Territorial Force or the National Cadet Corps or the Territorial Army or the Indian Armed Forces;

(g)

if he is a member of any organization of the nature specified in paragraph 1 of Schedule III.

6.

Qualifications for enrolment in the Junior Division.

- No student of the male sex of any School offering himself for enrolment in the Junior Division shall be eligible for enrolment :-

(a)

unless he is of good character;

(aa)

[unless he is a citizen of India or a subject of Nepal;

[Ibid.]

Provided that the Central Government may, in any suitable case, relax the provision of this clause;]

(b)

unless he has attained the age of 13 years and has not attained the age of [18½]

[Substituted by S.R.O. 64, dated 5th February, 1955, Part II, Section 4, Page 37.]

years;

Provided that the Central Government may, in the case of students of any school or any class of schools, relax the provisions of this clause

(c)

unless he is on the roll of the school which is providing the unit or part thereof;

(d)

unless he satisfied such standard of physical fitness in height, chest measurement and other respects as may be specified by the Ministry of Defence, Government of India;

(e)

if he has at any time been convicted of an offence involving moral turpitude and a sentence other than one of fine or of imprisonment in defaults of payment of fine has been passed in respect of such offence, such sentence not having been subsequently reversed, or remitted or the offence pardoned;

Provided that a person who is ineligible under this clause shall be eligible for enrolment if he produces a certificate from the State Government that he is a fir person to be enrolled;

(f)

if he is a member of any organization of he nature specified in paragraph 1 of Schedule III.

7.

Application for enrolment.

(1)

A student desirous of being enrolled in the Senior Division shall apply to the Officer commanding the unit.

(2)

A student desirous of being enrolled in the Junior Division shall apply to the Headmaster of the school providing the unit or part thereof.

(3)

The Officer to whom an application under sub-rule (1) has been made, shall cause the applicant to fill up and sign in his presence a statement in Form I.

(4)

The Headmaster to whom an application under sub-rule (2) has been made shall cause the applicant to fill up and sign in his presence a statement in Form II.

8.

Verification.

- When an application is made to a Commanding Officer or a Headmaster under rule 7, he shall satisfy himself that the application is in proper form and that the applicant fulfils the conditions of enrolment specified in rule 5 or 6, as the case may be. The Commanding Officer or the Headmaster may make such further enquiry regarding the suitability of the applicant for enrolment in the unit or part thereof in which he desires to be enrolled, as may be prescribed in this behalf, by the State Government.

9.

Medical Examination.

- If the Commanding Officer or the Headmaster is satisfied that the application is in order, and that the applicant fulfils the conditions of enrolment and that he is suitable for enrolment in the unit or part thereof in which he desires to be enrolled, he shall cause the applicant to be medically examined.

10.

Rejection.

- If the Commanding Officer or the Headmaster is not satisfied that the application is in order or that the applicant fulfils the conditions of enrolment or that he is suitable to be enrolled in the unit or part thereof or the applicant is reported to be medically unfit for service in the National Cadet Corps, the Commanding Officer or the Headmaster shall reject the application and shall inform the applicant accordingly.

11.

Method of enrolment.

(1)

If the Commanding Officer does not reject the application, the applicant shall be accepted for enrolment in the Senior Division, and shall be required to sign a declaration in Form I. If the applicant is a minor, his father or guardian shall also be required to sign a declaration provided in the form.

(2)

If the Headmaster does not reject the application, the applicant shall be accepted for enrolment in the Junior Division. The applicant shall be required to sign a declaration in Form II and his father or guardian shall also be required to sign a declaration in the Form.

(3)

If the Commanding Officer or the Headmaster is satisfied that the applicant, or his father or guardian in the case of a minor applicant, understand the questions put to the applicant and consent to the conditions of service, he shall sign a certificate to that effect on the said Form, and the applicant shall thereupon be deemed to have been enrolled.

12.

Period of enrolment.

(1)

Subject to the provisions of Part VII of these Rules, every person accepted for enrolment in the Senior Division Army Wing shall be enrolled for a period of two years and a person accepted for enrolment in the Senior Division Air Wing or the Senior Division Naval wing shall be enrolled for a period of two years.

(2)

The period specified in sub-rule (1) shall commence from the date of enrolment under Rule 11.

13.

Extension of service.

(1)

A cadet of the Senior Division may be permitted to extend his enrolment for a period of one year at a time up to maximum of three years total service.

(2)

A cadet of the Junior Division may be permitted to extend his enrolment for a period of one year up to a maximum of three years total service.

Part III ? Appointment And Transfer

14.

Appointment.

(1)

A student enrolled in the Senior Division shall be appointed by the Commanding Officer to the unit or part of the unit which is provided by the college to which the student belongs.

(2)

A student enrolled in the Junior Division shall be appointed by the Headmaster to the unit or part thereof which is being provided by his School.

15.

Transfer.

(1)

The transfer to another unit of the Senior Division or Junior Division, as the case may be, of a cadet who has been appointed to a unit of that Division will be permissible by mutual consent of the Commanding Officers in the case of the Senior Division and of the Headmasters in the case of Junior Division.

(2)

A cadet who desires to be transferred shall submit his application in writing to his Commanding Officer or Headmaster as the case may be, and shall, in the application, state his reasons for desiring the transfer and the unit or part thereof to which he desires to be transferred.

Part IV ? Appointment Of Officers

16.

Qualifications for appointment.

- No person offering himself for appointment as an officer shall be appointed as such officer :-

(a)

unless he is of good character :

(aa)

[unless he is a citizen of India or a subject of Nepal:

[Inserted by S.R.O. 60, dated 3rd June, 1950, Part II, Section 4, Page 50.]

Provided that the Central Government may, in any suitable case relax the provisions of this clause;]

(b)

unless he satisfies the following requirements regarding his age -

(i)

in the case of an appointment to the Senior Division of the Corps, he has attained the age of 21 years and has not attained the age of 32 years;

(ii)

in the case of an appointment to the Junior Division of the Corps, he has attained the age of 21 years and has not attained the age of 32 years;

(c)

unless he satisfies such standard of physical fitness in height, chest measurement and other respects as may be specified by the Ministry of Defence, Government of India;

(d)

unless he is a permanent member of the teaching staff of a college with a minimum of 3 years service as a regular lecturer or he is a regular member of the teaching staff of a school with 3 years service;

Provided that in the case of such members of the teaching staff who have served in the National Cadet Corps as Under Officers or have obtained 'B' or 'C' Certificates, the said condition of 3 years service may be relaxed by the Director General National Cadet Corps and they may be appointed even earlier;

(e)

if he has at any time been convicted of an offence involving moral turpitude and a sentence other than that of fine or of imprisonment in default of payment of fine has been passed in respect of such offences, such sentence not having been subsequently reversed or remitted or the offence pardoned;

(f)

if he has been dismissed from the University Corps of the Indian Territorial Force or the National Cadet Corps or the

Territorial Army or the Indian Armed Forces;

(g)
if he is a member of any organization of the nature, specified in paragraph 1 of Schedule III :

Provided that -

- (i)
in case of an officer discharged from the University Corps of the Indian Territorial Force, the Ministry of Defence, Government of India, may relax the age limit prescribed by clause (b);
- (ii)
a person who is ineligible under clause (e) shall be eligible for appointment if he produces a certificate from the State Government that he is a fit person to be appointed;
- (iii)
the Ministry of Defence, Government of India, may authorize the appointment of any person who is not qualified for appointment under the rule.

17.

Application for Appointment.

(1)
A person desirous of being appointed as an officer in the Senior Division shall apply direct to the Vice-Chancellor of the University or the Director of National Cadet Corps of the State or the Director of Public Instructions, as may be specified in this behalf by the State Government, with one copy to the College, and thereupon the Principal of the College shall forward his recommendations to the Vice-Chancellor, the Director National Cadet Corps of the State or the Director of Public Instructions as the case may be.

(2)
A person desirous of being appointed as an officer in the Junior Division shall apply to the Headmaster of his school who shall forward the application :-

(a)
Where there is a District Inspector of Schools, to such Inspector;

(b)
Where there is no District Inspector of Schools, to such other Educational Authority as may be specified in this behalf by State Government.

The District Inspector of Schools or other Educational Authority, as the case may be, shall forward the application with his recommendations to the Director of Public Instruction.

(3)
The Principal of the College to whom an application under sub-rule (1) has been made shall cause the applicant to fill up and sign in his presence a statement in Form III.

(4)
The Headmaster to whom an application under sub-rule(2) has been made shall cause the applicant to fill up and sign in his presence a statement in Form III.

18.

Verification.

(1)
When an application under rule 17 is made to the Principal of a college or the Headmaster, he will satisfy himself that the application is in order and that the applicant fulfils the conditions of appointment specified in rule 16.

(2)
The Principal of a college or the Headmaster shall fill up and sign the relevant part of a Statement in Form III and shall forward the application to the appropriate authority specified in rule 17.

(3)
The Vice-Chancellor of a University or the Director National Cadet Corps or the Director of Public Instruction, on receipt of an application under rule 17 shall make such further inquiry regarding the suitability of the applicant for appointment as an officer in the National Cadet Corps as may be prescribed in this behalf by the State Government.

19.

Medical Examination.

- If the Vice-Chancellor of a University or the Director National Cadet Corps or the Director of Public Instruction is satisfied that the applicant fulfils the conditions of appointment and that he is suitable for appointment as an officer in the National Cadet Corps, he shall cause the applicant to be medically examined.

20.

Rejection.

- If the Vice-Chancellor of a University or the Director National Cadet Corps or the Director of Public Instruction is not satisfied that the application is in order, or that the applicant fulfils the conditions of appointment, or that he is suitable to be appointed as an officer in the National Cadet Corps, or the applicant is reported to be medically unfit for service in the National Cadet Corps, the Vice-Chancellor or the Director National Cadet Corps or the Director of Public Instruction shall reject the application and shall inform the applicant accordingly.

21.

Method of Appointment.

(1)

If the Vice-Chancellor of a University or the Director National Cadet Corps or the Director of Public Instruction does not reject the application, the applicant shall be directed to appear before a Selection Board, to be set up in the manner specified by the Ministry of Defence, Government of India.

(2)

If the Selection Board recommends the applicant for appointment as an officer in the National Cadet Corps, the applicant shall be required to sign a declaration in Form III. The President of the Selection Board on being satisfied that the applicant understands the questions put to him and consents to the conditions of service, shall sign a certificate to that effect on the said Form.

(3)

The State Government shall then direct the applicant to proceed to an Army unit for undergoing training for period of time specified in Part VIII of these rules.

(4)

On completion of training, the applicant shall be reported on and his application together with the report shall be sent to the Ministry of Defence, Government of India.

(5)

If the Government of India is satisfied that the applicant is suitable and qualified for appointment as an officer in the National Cadet Corps, it will commission him as an officer in the National Cadet Corps.

(6)

[The Government of India may grant to any person without pre-commission training, commission as an officer-

(a)

in the Senior Division if he has rendered commissioned service in the Armed Forces, U.O.T.C./I.T.F./[T.A.]/[J&K Cadet Corps]

[Inserted by S.R.O. 10, dated 30th, 1957, Part II, Section 4, page 5]

or national Cadet Corps (Senior Division) or has passed Certificate 'C' Examination of the National Cadet Corps;

(b)

in the Junior Division if he has rendered service as an officer not below the rank of Junior Commissioned Officer of a Viceroy's Commissioned Officer in the Army or a Chief Petty Officer in the Navy or a Warrant Officer in the Air Force or a Commissioned Officer in the National Cadet Corps or has passed Certificate 'B' or 'C' Examination of the National Cadet Corps.]

22.

Period of Appointment.

- Subject to the provisions to Part VII of these rule, a person commissioned in the National Cadet Corps shall hold that commission as an officer in that Corps for a total period not exceeding 15 years or until he reaches 45 years of age, whichever is earlier, when he shall be discharged from the Corps :

[Provided that if in the opinion of the authority granting him the commission, such person continues to be physically fit after he has reached the age of 45 years such authority may extend the period of the Commission up to a date not later than the date when such person reaches the age of 50 years.]

[Inserted by S.R.O. 289, dated 4th July, 1953, Part II, Section 4, page 261]

Provided [further]

[Inserted by S.R.O. 187, dated 9th May, 1953, Part II, Section 4, page 208]

that an officer commissioned, after getting his discharge from the University Corps of the Indian Territorial Force, shall be permitted to serve for such longer period as may be authorised by the Ministry of Defence, Government of India.

22.

-A. Notice for leaving College or School.

(1)

Where an officer appointed to the Senior Division of the Corps desires to leave the College in which is located the unit to which he is posted under sub-rule (1) of rule 23, he shall give six months notice in writing of his intention to do so to the Principal of the College.

(2)

Where a person appointed to the Junior Division of the Corps desires to leave the School in which is located the unit to which he is posted under sub-rule (2) of Rule 23, he shall give three months notice in writing of his intention to do so to the Headmaster of the School.

Part V ? Posting And Transfer

23.

Posting.

(1)

An officer of the Senior Division of the National Cadet Corps shall be posted to a unit of that Division by the Ministry of Defence, Government of India.

(2)

An officer of the Junior Division of the National Cadet Corps shall be posted to a unit of that Division by the State Government.

24.

Transfer.

(1)

The transfer to another unit of the Senior Division of an officer who has been posted to a unit of that Division shall be authorized by the Ministry of Defence, Government of India.

(2)

If the proposed transfer is to a unit of the Senior Division in another State, the Ministry of Defence, Government of India, shall consult the State Government in whose jurisdiction the unit is located, and obtain their concurrence to the transfer.

(3)

The transfer to another unit of the Junior Division of an officer posted to a unit of that Division shall be authorized by the State Government.

(4)

An officer of the Senior Division who desires to be transferred shall submit his application in writing, through the Principal of the college, to the Vice-Chancellor of the University or to the Director of Public Instruction as may be specified in his behalf by the State Government and shall, in the application, state his reasons for desiring the transfer and the unit to which he desires to be transferred. The Vice-Chancellor or the Director of Public Instruction shall then forward the same through the State Government to the Ministry of Defence, Government of India, together with his recommendations.

(5)

An officer of the Junior Division, who desires to be transferred shall submit his application in writing through the Headmaster, to the Director of Public Instruction and shall, in the application, state his reasons for desiring the transfer and the unit to which he desires to be transferred.

Part VI ? Officers - Duties, Powers And Promotions

25.

Duties.

(1)

Officers of the Senior and Junior Division will be responsible for the training and discipline of the cadets placed under

their command.

(2)

They shall attend all training parades as specified in Part VIII of these rules and shall attend the annual camp.

26.

Powers.

(1)

Officers of the Senior and Junior Division shall exercise powers of command over all cadets in their unit.

(2)

[Officers of the Senior Division shall exercise such powers over Junior Commissioned Officers, Warrant Officers, and Non-Commissioned Officers of the Army, Chief Petty Officers, Petty Officers and Men of Indian Navy, Warrant Officers and Non-Commissioned Officers of the Indian Air Force, as the case may be posted or attached to their units as may be specified by the Government of India in the Ministry of Defence.]

[Substituted by S.R.O. 261, dated 16th August, 1952, Part II, Section 4, page 115]

(3)

Officers of the Senior Division shall be junior to all officers of the Armed Forces and territorial Army and whole-time National Cadet Corps commissioned officers of similar rank and among themselves shall take seniority according to the date of their commission in the Corps:

[Provided that period of service rendered by an officer of the Senior Division as a Commissioned Officer in the Armed Forces, U.O.T.C./I.T.F./[T.A.]

[Inserted by S.R.O. 187, dated 9th May 1953, Part II, Section 4, page 208]

/[J & K Cadet Corps]

[Inserted by S.R.O. 10, dated 30th December, 1957, Part II, Section 4 page 5]

or National Cadet Corps (Senior Division) shall count towards his seniority and promotion.]

[Inserted by S.R.O. 187, dated 9th May, 1953, Part II, Section 4, page 208]

(4)

Officers of the Junior Division shall be junior to all Armed Forces Territorial Army and Senior Division Officers and between themselves shall take seniority according to the date of their commission in the corps:

[Provided that period of service rendered by an officer of the Junior Division as an officer not below the rank of a Junior Commissioned Officer or a Viceroy's Commissioned Officer in the Army or a Chief Petty Officer in the Navy or a Warrant Officer in the Air Force or a Commissioned Officer in the National Cadet Corps shall count towards his seniority and promotion:]

[Substituted by S.R.O. 187, dated 9th May, 1953, Part II, Section 4, page 208]

Provided further that the powers of command specified in sub-rules (1) to (4) shall be exercised by the Officers of the Corps when in uniform and when attending an authorized parade or when in annual camp.

(4a)

[National Cadet Corps Officers of the Senior and Junior Divisions who proceed on study leave, long leave or posted away to perform some other duties and are permitted to keep lien with their Schools/Colleges, shall be placed on Supernumerary List for a period not exceeding two years unless Government in a special case agree to extend it. This period shall not be counted towards their seniority for promotions in the National Cadet Corps.]

[Inserted by S.R.O. 215, dated 23rd May, 1953, Part II, Section 4, page 220]

(4b)

[Where an officer is discharged under sub-rule (2) of rule 28 the period from the date he ceased to perform his duties under the Act to the date of his discharge shall not be counted for the purpose of seniority or promotion or other benefits in the National Cadet Corps.]

[Substituted by S.R.O. 177, dated 1st May, 1958, Part II, Section 4, page 111. Sub-rule (4b) had been inserted by S.R.O. 28, dated 15th January, 1958, Part II, Section 4, page 11]

(5)

The powers of punishment of officers are specified in Part X of these rules.

27.

Promotions.

- The ranks and scales of substantive promotions of officers of the Senior and Junior Division shall be as specified in

paragraph 2 of Schedule III and those of acting promotions of officers of the Senior Division shall be specified in paragraph 3 of that Schedule.

Part VII ? Discharge

28.

Discharge.

(1)

Every officer and cadet shall, on becoming entitle to receive his discharge under the Act or these rules, be so discharged with all convenient speed.

(2)

Any officer or cadet may be discharged as hereinafter provided on any of the following grounds, namely:-

(a)

that he has been convicted by a criminal court of an offence punishable with transportation or imprisonment;

(b)

that he has in filling up any form prescribed by these rules or otherwise for the purpose of obtaining his enrolment or appointment made any statement which was false and which he knew to be false or did not believe to be true;

(c)

that his service are not longer required;

(d)

that he is medically unfit for further service;

(e)

that in the case of an officer, he has been permitted to resign his commission;

(f)

that he ceases to be on the staff of or on the roll of the college or school, as the case may be, providing the unit or part thereof to which he had been posted or appointed.

(g)

for any other reason which, in the opinion of the competent authority, is sufficient to warrant discharge.

29.

Discharging authority.

(1)

The authority competent to authorize the discharge of an officer shall be the Ministry of Defence Government of India.

(2)

The authority competent to authorize the discharge of a cadet appointed to a unit of the Junior Division shall be the Headmaster of the school providing the unit or part thereof:

Provided that a cadet of the Junior Division discharged under clause (c) of sub-rule (2) of rule 28 shall have the right of appeal to the District Inspector of Schools or such other Educational authority as may be specified in this behalf by the State Government, who may direct that the discharge order shall be cancelled.

(3)

The authority competent to authorise the discharge under each of the provisions specified in column (1) of the Table annexed hereto, of a cadet appointed to a unit of the Senior Division shall be the authority specified in the corresponding entry in column (2) thereof.

TABLE

Provision

under which discharge authorised

Authority

competent to authorise discharge of cadet

1

2

Sub-rule

(1) of rule 28

The

Commanding Officer.

Clause

(a) of sub-rule (2) of rule 28

The

Commanding Officer.

Clause

(b) sub-rule (2) of rule 28

The

Vice-Chancellor of the University or the Director of Public Instruction.

Clause

(c) of sub-rule (2) of rule 28

The

Vice-Chancellor of the University or the Director of Public Instruction.

Clause

(d) of sub-rule (2) of rule 28

The

Commanding Officer on the recommendation of a Medical Officer.

Clause

(f) of sub-rule (2) of rule 28

The

Commanding Officer.

(4)

A discharge duly authorized shall be carried out by the Commanding Officer, in the case of the Senior Division, and the Headmaster, in the case of the Junior Division, with all convenient speed.

30.

Discharge on application.

(1)

Senior Division.- (a) Any officer or cadet of the Senior Division not entitled to his discharge under the Act or these rules who is desirous of being discharged prior to the expiration of the period for which he was commissioned or enrolled, shall apply in writing to the Officer Commanding the unit to which he has been posted or appointed, stating the reasons for the application.

(b)

The Commanding Officer shall forward the application, with his own recommendation thereon, to the Vice-Chancellor of the University or to the Director of Public Instruction as may be specified in this behalf by the State Government. The Vice-Chancellor or the Director of Public Instruction may, in the case of cadet, either grant such application or reject it.

(c)

[In the case of an officer, the Vice-Chancellor or the Director of Public Instruction shall forward the application with his recommendation thereon through the State Government to the Ministry of Defence, Government of India, who may either grant such application or reject it.]

[Substituted by S.R.O. 108, dated 23rd March, 1957, Part II. Section 4, page 55]

(2)

Junior Division.- (a) Any officer or cadet of the Junior Division not entitled to his discharge under the Act or these rules, who is desirous of being discharged prior to the expiration of the period for which he was commissioned or enrolled, shall apply in writing to the Headmaster of the school which is providing the unit or part thereof and to which he has been posted or appointed stating the reasons for the application.

(b)

The Headmaster may, in the case of a cadet, either grant of such application or reject it.

(c)

The Headmaster, in the case of an officer, shall forward the application with his own recommendation thereon to the Director of Public Instruction. The Director of Public Instruction shall forward the application with his recommendation

thereon to the Ministry of Defence, Government of India, who may either grant such application or reject it.

31.

Discharge certificate.

- Every person subject to the Act who is discharged from the Corps shall be furnished by his Commanding Officer or his Headmaster with a certificate setting forth:-

(a)

the authority dismissing or discharging him;

(b)

the cause of his dismissal or discharge;

(c)

the full period of his service in the National Cadet Corps.

Part VIII

Training

32.

Preliminary Service training.

- Every person who has been selected by a Selection Board for appointment as an officer in the National Cadet Corps in the manner specified hereinto fore in these rules, shall undergo preliminary Services training with an Armed Forces unit for period as below:-

(a)

an applicant for the Junior Division - 2 months.

(b)

an applicant for the Senior Division, Infantry Unit - 3 months.

(c)

an applicant for the Senior Division, Medical, Artillery, Remount and Veterinary Units or Engineering Units - 4 months.

(d)

an applicant for the Senior Division, Armoured Corps, Signal or E.M.E. Units - 5 months.

(e)

an applicant for the Senior Division Air Wing Unit - 4 months.

(f)

[an applicant for the Senior Division Naval Wing Unit - 4 months.]

[Added by S.R.O. 303, dated 20th September, 1952, Part II, Section 4, page 131]

33.

Service training.

(1)

Every officer and cadet who has been posted or appointed to a unit or part thereof of the Senior or Junior Division shall be liable to undergo service training for a period of at least 4 hours per week during the training year :

Provided that no training may be carried out during periods when the college or school in which a unit or part thereof is located is closed for vacation :

Provided that every officer and cadet of the Senior and Junior Division shall undergo service training for a minimum period of 65 hours during the annual college and school session, as the case may be.

(2)

Every officer and cadet who has been posted or appointed to a unit or part thereof shall also be liable during the training year to attend an annual training camp of 14 days duration in the case of Senior Division unit and of 10 days duration in the case of a Junior Division unit.

34.

Further Service training.

(1)

Every officer of the Senior or Junior Division shall, in addition to the training prescribed by rules 32 and 33, be liable for such period of further service training with an Armed Forces unit as may be directed by the Ministry of Defence, Government of India.

(2)

Every cadet of the Senior or Junior Division shall, in addition to the training prescribed by rule 33, be liable to undergo such further service training for which he may volunteer and which may from time to time be sanctioned by the Ministry of Defence, Government of India, or by the State Government.

[34-A. Social Service Training-

[Added by S.R.O. 303, dated 20th September, 1952, Part II, Section 4, page 131]

Every officer and cadet of the Senior or the Junior Division shall, in addition to the training prescribed by rules 32, 33 and 34, be liable to undergo such Social Service training and for such period as the Government of India in the Ministry of Defence may, from time to time, direct.]

Part IX ? Pay And Allowances

35.

Pay.

(1)

Every officer commissioned in the National Cadet Corps and posted to a unit of the Senior Division shall be entitled :-

(a)

for every day, not exceeding 15 days in all, actually spent in the annual training camp;

(b)

[for periods of actual attendance at the Combined Cadre and Social Service Camps and at authorized courses of instruction in Armed Forces Schools, and with Armed Forces Units, including intervening Sundays and holidays, to such pay as is specified in Schedule II:]

[Inserted by S.R.O. 230, dated 19th June, 1954, Part II, Section 4, page 179]

Provided that NCC officers attending the Officers Special Course at the NCC Academy, Purandhar, shall not be entitled to pay of rank, but shall be entitled to only their normal pay as teachers :

(c)

to an outfit allowance of Rs.400/- on being first commissioned;

Provided that an officer, who has already drawn such an allowance as a commissioned officer in the University Corps of the Indian Territorial Force, shall not be entitled to such outfit allowance.

(d)

[to an outfit allowance of Rs.45/- for the maintenance of his uniform at the end of every year of service in the National Cadet Corps;

[Added by S.R.O. 303, dated 20th September, 1952, Part II, Section 4, page 131]

(e)

to an honorarium of Rs.75 per month throughout a year.]

(2)

[Every officer commissioned in the National Cadet Corps, and posted to a unit of the Junior Division shall be entitled for period of actual attendance at the Combined Cadre and Social Service Camp, and at authorized courses of instruction in Armed Forces Schools and with Armed Forces Units including intervening Sundays and holidays, to such pay as is specified in Schedule II.]

[Substituted by S.R.O. 158, dated 23rd April, 1955, Part II, Section 4, page 87]

(3)

Every officer commissioned in the National Cadet Corps and posted to a unit of the Junior Division shall be entitled to receive at the end of the training year an honorarium as specified in Schedule II on condition that he has attended the annual training camp of his unit in such a training year, or has attended a course at the training centre during the actual period of the training camp.

(4)

A cadet appointed to a unit or part thereof of the Senior or Junior Division shall not be entitled to pay.

(5)

[Every officer commissioned in the National Cadet Corps and posted to a unit of the Junior Division (Army, Navy and Air Wings) will be paid an honorarium of Rs,50 per month throughout the year.]

[Inserted by S.R.o. 331, dated 27th August, 1955, Part II, Section 4, page 131]

Explanation- The payment of honorarium under clause (e) of sub-rule (1) and under sub-rule (5) shall be in addition to the pay admissible to the officer concerned.

36.

Allowances.

(1)

Every officer and cadet of the Senior and Junior Division posted or appointed to a unit or part thereof shall be entitled to such allowances as are specified in Schedule II.

(2)

Every person selected for appointment as an officer and proceeding to an Armed Forces unit for training as specified in sub-rule(3) of rule 21, shall be entitled to such allowances as are specified in Schedule II.

Part X ? Discipline

37.

Service obligations.

(1)

An officer or cadet shall have no liability to render active service in any of the Armed Forces of the Union.

(2)

Every officer and cadet shall, when undergoing training obey the orders and carry out the directions of any person who is placed in command over him, irrespective of whether that person is subject to any law relating to the Armed Forces or to the Act.

38.

Offences.

- An officer or cadet posted or appointed to a unit or part thereof of the Senior or Junior Division or an applicant for appointment as an officer attached to an Armed Forces unit of preliminary training as specified in sub-rule (3), rule 21, when undergoing training, commits an offence, if he does any of the following acts, namely :-

(1)

When on parade, engaged on any service duty, or wearing uniform:-

(a)

strikes, or uses or offers violence to, or uses threatening or insubordinate language to, or behaves with contempt towards his superior officer; or

(b)

disobeys any standing order of, or lawful command given by, his superior officer; or

(c)

neglect to obey a general or unit order, made specially applicable to the National Cadet Corps, by the Officer Commanding the unit to which he belongs; or

(d)

is in a state of intoxication; or

(e)

being an officer or cadet non-commissioned officer strikes or ill treats any person subject to any law relating to the Armed Forces or to the Act, who is subordinate in rank or position.

(2)

without sufficient cause fails to appear at the place of parade at the time fixed or to attend at any place in his capacity as a member of the National Cadet Corps, when duly required so to attend or when on parade without sufficient cause quits the ranks;

(3)

without sufficient cause fails to perform any part of the training which by or under the Act he is required to perform;

(4)

strikes, or uses or offers violence to any person whether subject to any law relating to the Armed Forces or not in whose custody he is placed, and whether such person is or is not his superior officer;

(5)

resists an escort whose duty it is to arrest him or detain him in custody;

(6)

being under arrest or detention or otherwise in lawful custody escapes or attempts to escape;

(7)

when in charge of any property belonging to any Government of India or to a unit or part thereof of the National Cadet Corps, makes away with, or is concerned in making away with any such property;

(8)

willfully injures, or by culpable neglect loses or causes injuries to any such property as is specified in clause (7) or to property belonging to an Armed Forces unit, institute or mess;

(9)

knowingly furnishes a false return or report of the number or state of men under his command or charge, or of any money arms or ammunition, clothing, equipment, stores or other property in his charge;

(10)

through design or culpable neglect omits to make or send any return of any matter mentioned in clause (9) which it is his duty to make or send;

(11)

when it is his official duty to make a declaration respecting any matter, makes a declaration respecting such matter which he either knows or believes to be false or does not believe to be true;

(12)

knowingly makes against any person subject to any law relating to the Armed Forces or to the Act, and accusation which he either knows or believes to be false or does not believe to be true;

(13)

falsely personates any other person at any parade or on any occasion when such other person is required by or under the Act to do any act or attend at any place, or abets any such act of pronation.

Explanation.- The expression "superior officer" means and includes an officer, Warrant Officer and Non-commissioned Officer, as the case may be, whether subject to any law relating to the Armed Forces or to this Act, superior in rank or position to the person with reference to whom the expression is used.

39.

Disposal of offences.

(1)

A charge made against an officer or an applicant for appointment as an officer for any offence specified in rule 38 shall after investigation by the Officer Commanding an Armed Forces unit to which the offender is attached for training or by the Officer Commanding the unit to which the offender belongs or by the Headmaster of the school which is providing the unit or part thereof of the Junior Division to which the offender belongs, be dealt with by him in one or other of the following ways, that is to say, he may :-

(a)

dismiss the charge if no offence is disclosed by the evidence, or if in his opinion the charge ought not to be proceeded with; or

(b)

dispose of the case summarily; or

(c)

take steps for bringing the offender to trial by a criminal court;

or

(d)

refer the matter to superior authority for instruction, and act in accordance with the instructions so received.

(2)

A charge made against a cadet non-commissioned officer or cadet, of any offence specified in rule 38, shall after investigation by the Officer Commanding an Armed Forces unit to which the offender is attached for training or by Officer Commanding the unit to which the offender belongs or by the Headmaster of the school providing a unit or part thereof of the Junior Division to which the offender belongs, be dealt with by him in one or other of the following ways, that is to say, he may :-

(a)

dismiss the charge if no offence is disclosed by the evidence, or if in his opinion the charge ought not to be proceeded with; or

(b)

dispose of the case summarily; or

(c)

takes steps for bringing the offender to trial by a criminal court; or

(d)

refer the matter to superior authority for instructions and act in accordance with the instructions so received.

Explanation.-(1) The superior authority for the purposes of sub-rule (1) shall be :-

(a)

in the case of an officer or an applicant for appointment as an officer attached to an Armed Forces unit for training, the Commander of the Sub-Area or equivalent Commander of the Indian Navy or Indian Air Force in a Part A State or the Commander of the State Forces in a Part B State, as the case may be, in which the Armed Forces unit is located;

(b)

in the case of an officer of the Senior Division charged with an offence who was at the time of offence serving with a unit or part thereof of the Senior Division, the Secretary of the Department governing the National Cadet Corps organization in the State, or the Vice-Chancellor of a University or the Director of Public Instruction, or the Head of the Department controlling a particular College or institution empowered in this behalf by the State Government;

(c)

in the case of an officer of the Junior Division charged with an offence who was at the time of the offence serving with a unit or part thereof of the Junior Division, the Director of Public Instruction.

(2)

The superior authority for the purposes of sub-rule (2) shall be :-

(a)

in the case of a cadet non-commissioned officer or cadet of the Senior Division attached to an Armed Forces Unit, for training, the Commander of the Sub-Area or equivalent Commander of the Indian Navy or Indian Air Force or of the State Forces as the case may be in which the Armed Forces unit is located;

(b)

[in the case of cadet non-commissioned officer or a cadet of the senior Division serving with a Senior Division unit or part thereof at the time of the offence, the Vice-Chancellor of a University or the Director of Public Instruction, or the Head of the Department controlling a particular College or institution empowered in the behalf by the State Government;]

[Substituted by S.R.O. 290, dated 4th July, 1952, Part II, Section 4, page 261]

(c)

in the case of a cadet non-commissioned officer or a cadet of the Junior Division serving with a unit or part thereof of the Junior Division at the time of the offence, the Director of Public Instruction.

(3)

A charge made against a cadet non-commissioned officer or cadet of any offences specified in sub-rule (1), (2), (3), (9), (10), (11), (12) and (13) of rule 38 shall, after investigation by the officer in command of a sub-unit of the Senior Division or a Unit or sub unit of the Junior Division to which he offender belongs, be dealt with by him in one or other of the following ways, that is to say he may :-

(a)

dismiss the charge if no offence is disclosed by the evidence, or if in his opinion the charge ought not to be proceeded with; or

(b)

dispose of the case summarily; or

(c)

refer the matter to the Commanding Officer, in the case of the Senior Division, or to the Headmaster of the school providing the unit or sub-unit, in the case of the Junior Division.

40.

Summary reduction and punishments.-(1) The Secretary, Ministry of Defence, Government of India may award any of the following punishments to an officer or an applicant for appointment as an officer :-

(a)

dismissal from the Corps;

(b)

reduction to a lower rank;

(c)

forfeiture of seniority or service for the purpose of promotion for a period not exceeding twenty four months;

(d)

severe reprimand or reprimand;

(e)

forfeiture, in the case of an officer punished with dismissal, of arrears of pay and allowances and other public money due to him at the time of such dismissal;

(f)

stoppage of pay and allowances until any proved loss or damage occasioned by the offence of which the offender is charged is made good;

(g)

fine not exceeding rupees fifty.

(2)

An officer having power not less than that of a Sub-Area or equivalent commander of the Indian Navy or Indian Air Force or the State Forces may award any of the following punishments to an officer or an applicant for appointment as an officer or a cadet non-commissioned officer, attached to an Armed Forces unit for training :-

(a)

forfeiture of seniority or service for the purpose of promotion for a period not exceeding twelve months;

(b)

dismissal from the Corps, in the case of an applicant for appointment as an officer;

(c)

severe reprimand or reprimand;

(d)

stoppages of pay and allowances until any proved loss or damage occasioned by the offence of which the offender is charged is made good;

(e)

reduction, in the case of a cadet non-commissioned officer, to a lower grade or class or to the ranks as a cadet :

Provided that a cadet non-commissioned officer reduced to the rank of cadet shall not continue to be attached to the Armed Forces unit for training.

(3)

[The Secretary of the Department governing the National Cadet Corps organisation in the State or the Vice-Chancellor of a University or the Director of Public Instruction, or the Head of the Department controlling a particular College or Institution, empowered in this behalf by the State Government, may award any of the following punishments :]

[Substituted by S.R.O. 290, dated 4th July, 1952, Part II, Section 4, page 261]

(a)

In the case of an officer :-

(i)

forfeiture of seniority or service for the purpose of promotion for a period not exceeding twelve months;

(ii)

severe reprimand or reprimand;

(iii)

stoppages of pay and allowances until any proved loss or damage occasioned by the offence of which the offender is charged is made good;

(iv)

fine not exceeding rupees ten.

(b)

In the case of a cadet non-commissioned officer;-

(i)

dismissal from the Corps :

(ii)

reduction to a lower grade or class or place in the list of his rank or a lower rank or to the rank as a cadet.

Provided that a cadet senior under-officer or cadet under officer shall not be required to serve in the unit or part there of as a cadet.

(iii)

severe reprimand or reprimand;

(iv)

fine not exceeding rupees twenty.

(c)

In the case of a cadet :-

(i)

dismissal from the Corps;

(ii)

severe reprimand or reprimand;

(iii)

fine not exceeding rupees thrity.

(4)

An officer commanding an Armed Forces unit to which a person subject to the Act is attached for training or an Officer Commanding the unit may award any of the following punishment :-

(a)

In the case of an officer, below the rank of Captain, Flight Lieutenant or First Officer :-

(i)

admonishment;

(ii)

extra duties not exceeding two.

(b)

In the case of an applicant for appointment as an officer :-

(i)

severe reprimand or reprimand;

(ii)

admonishment;

(iii)

extra parades and duties not exceeding two.

(c)

In the case of a cadet non-commissioned officer :-

(i)

reduction, in the case of a cadet non-commissioned officer above the rank of sergeant to a lower grade or rank, and in the case of other cadet non-commissioned officers, to a lower grade or rank or to the ranks;

Provided that a cadet senior under-officer and cadet under-officer shall not be required to serve in the unit or part thereof below the rank of cadet Sergeant.

(ii)

severe reprimand or reprimand;

(iii)

extra parades and duties not exceeding three;

(iv)

admonishment.

(d)

In the case of a cadet :-

(i)

severe reprimand or reprimand;

(ii)

extra parades not exceeding three;

(iii)

extra guards and picquets not exceeding two for offences on those duties;

(iv)

confinement to the lines for a period not exceeding seven days during the annual training camp;

(v)

fine not exceeding rupees ten by the Officer Commanding the Senior Division unit only.

(5)

An officer in command of a sub-unit of the Senior Division may award to enrolled persons appointed to his sub-unit any of the following punishments :-

(a)

In the case of a cadet Sergeant and cadet Corporals :-

(i)

extra duties not exceeding two;

(ii)

admonishment.

(b)

In the case of cadet Lance Corporals :-

(i)

reduction to the ranks as a cadet;

(ii)

severe reprimand or reprimand;

(iii)

extra duties not exceeding two;

(iv)

admonishment.

(c)

In the case of a Cadet :-

(i)

severe reprimand or reprimand;

(ii)

extra parades not exceeding three;

(iii)

extra guards and picquets not exceeding two for offences on those duties;

(iv)

confinement to the lines for a period not exceeding three days during the annual training camp.

(6)

A Headmaster of a school, providing a unit or part thereof of the Junior Division, may award to persons posted or appointed to his unit any of the following punishments :-

(a)

In the case of an officer :-

(i)

admonishment;

(ii)

stoppages out of the annual honorarium until any proved loss or damage occasioned by the offence of which the offender is charged is made good.

Explanation.- When an officer commits an offence, which in the opinion of the Headmaster requires that the officer should not serve with the unit or part thereof until the orders of the Superior Authority have been obtained, he shall immediately suspend the officer and order him not to serve with the unit or part thereof until such orders have been received.

(b)

In the case of a cadet non-commissioned officer and cadets :-

(i)
dismissal from the Corps;

(ii)
reduction, in the case of a cadet non-commissioned officer to a lower rank or to the ranks as a cadet :
Provided that a cadet Troop Leader shall not be required to serve in the unit or part thereof as a cadet.

(iii)
severe reprimand or reprimand;

(iv)
admonishment.

(7)
An officer placed in command of a unit or sub-unit of the Junior Division may award to enrolled persons appointed to his sub-unit any of the following punishments :-

(a)
In the case of cadet non-commissioned officer :-

(i)
reduction, except of a cadet Troop Leader, to a lower rank or to the ranks as a cadet;

(ii)
severe reprimand or reprimand;

(iii)
extra duties not exceeding two;

(iv)
confinement to the lines for a period not exceeding three days during the annual training camp.

41.

Recovery of fines -

The person authorized award a fine under rule 40 shall take the following steps for recovery of the fine :-

(1)
He shall inform the offender that a fine up to a specified amount has been awarded to him and shall call upon him to pay it at once or within a period of time not exceeding 21 days from the date of the award.

(2)
He shall immediately inform the Principal of the college or the Headmaster of the school to which the offender belongs that a fine of a specified amount has been awarded to the offender, the time limit allowed to the offender for payment of the amount of fine and shall request the Principal or the Headmaster as the case may be that the fine be collected from the offender within the specified time.

(3)
The Principal of the college or the Headmaster of the school to which the offender belongs shall thereupon take such action as is customary in the college or school to recover the total amount of the fine imposed on the offender, if the offender fails to pay the specified amount within the time allowed to the offender.

(4)
The Principal or the Headmaster shall send an intimation in writing to the appropriate authority regarding the action which he is taking to recover the fine, if it has not been paid within the time allowed to the offender. The Principal or the Headmaster may allow additional time, not exceeding 14 days, from the date of expiry of the time allowed to the offender by the person making the award, for payment of the fine.

(5)
If the offender fails to pay the fine within the time allowed by the Principal or the Headmaster, the Principal or the Headmaster shall make a report to the appropriate authority.

(6)
On receipt or a report, the appropriate authority shall send a certified copy of the award to the District Magistrate or the Chief Presidency Magistrate as the case may be, having jurisdiction in the area in which the fine has been imposed.

(7)
On receipt of a certified copy, the District Magistrate or the Chief Presidency Magistrate, as the case may be, shall recover the fine in accordance with the provisions of the Criminal Procedure code, 1898, as if it has been imposed by

him and shall remit the amount recovered to the officer concerned.

(8)

On realization of the fine from the offender, the officer concerned shall credit the amount to the State Government.

Explanation.- In this rule, the expression "appropriate authority" means:-

(1)

[In the case of college, the Secretary of the Department governing the National Cadet Corps organisation in the State or the Vice-Chancellor of the university or the Director of Public Instruction, or the Head of the Department controlling a particular college or institution, empowered in this behalf by the State Government.]

[Substituted by S.R.O. 290, dated 4th July, 1952, Part II, Section 4, page 261]

(2)

In the case of school-

(a)

where a school is under the jurisdiction of a District Inspector of Schools, such Inspector,

(b)

in any other case, such Educational Authority as may be specified in this behalf by the State Government.

Part XI ? Advisory Committees

42.

Constitution and procedure of Advisory Committees.

(1)

A Central Advisory Committee shall be constituted in accordance with the provisions of section 12 of the Act. The Director General of the National Cadet Corps shall be the Secretary of the Committee.

(2)

A State Advisory Committee shall be constituted as follows:-

(a)

the Minister of Education in a State/Union Territory having a Legislature functioning, or the Adviser to the Governor, incharge of the Education portfolio in a State where, for the time being, no Legislature is functioning, or the Administrator in a Union Territory where no Legislature is functioning-who shall be the Chairman of the Committee.

(b)

the Secretary of the Education Department of the State concerned; or if the National Cadet Corps is controlled by any other department then the secretary of that Department;

(c)

the Vice-Chancellor of each University, if any, in the State:

Provided that if the Vice-Chancellor is unable to attend any meeting of the Advisory Committee, he may depute the Pro-Vice-Chancellor or Deputy Vice-Chancellor, or where there is no Pro-Vice-Chancellor or Deputy Vice-Chancellor, any officer of the University not below the rank of the Registrar to attend such meeting on his behalf.

(d)

head(s) of the Department(s) incharge of the National Cadet Corps Units in the State.

(e)

one representative of the General Officer Commanding in-Chief from the Staff of Headquarters of the Command or Area or Sub-Area, concerned;

(ee)

two Principals from Colleges which provide a unit of the Senior Division/Girls Division (Senior Wing) to be nominated annually by the State Government;

(f)

[two Headmasters/Headmistress of schools which provide a unit of the Junior Division/Girls Division (Junior Wing) to be nominated annually by the State Government;]

[Substituted by S.R.O. 290, dated 4th July, 1952, Part II, Section 4, page 261]

(g)

[the Director National Cadet Corps, concerned;]

[Substituted by S.R.O. 158, dated 23rd April, 1955, Part II, Section 4, page 87]

(h)

[three non-official members of whom one shall be a woman, and another shall be a member of the State Legislature or a non-official in case there is no Legislature for the time being functioning in the State - to be nominated annually by the State Government.]

[Substituted by S.R.O. 212, dated 8th June, 1960, Part II, Section 4, page 129]

(i)
the member, if any, of the Central Advisory Committee residing in the State;

(j)
[one representative of Finance Department of the State Government;]

[Inserted by S.R.O. 49, dated 7th February, 1953, Part II, Section 4, page 43]

(k)
[not more than one official, if in the opinion of the State Government, he is likely to promote the interests of the National Cadet Corps - to be nominated annually by the State Government.]

[Inserted by S.R.O. 224, dated 12th June, 1957, Part II, Section 4, page 113]

A senior officer of the Education Department, to be nominated by the State Government, shall be the Secretary of the Committee.

(3)
A recommendation on any matter concurred in by the majority of the members of an Advisory Committee shall be deemed to be the recommendation of the Committee.

(4)
Minutes shall be kept of every meeting of an Advisory Committee. One Copy of such minutes shall be forwarded to the Director General National Cadet Corps.

43.
Powers, duties and functions of Advisory Committees.

(1)
The Central Advisory Committee shall advise the Central Government on such matters affecting the National Cadet Corps as a whole as it may refer to the Committee.

(2)
A State Advisory Committee shall ordinarily meet [at least twice a year]

[Substituted by S.R.O. 118, dated 19th February, 1958, Part II, Section 4, page 77]

and may, in relation to those portions of the National Cadet Corps which are located within the State:-

(a)
make recommendations and tender advice to the Central State Government and to the State Government upon the following matters :-

(i)
the formation of new units and disbandment of existing units;

(ii)
the selection of the colleges and schools which should raise units or sub-units;

(iii)
the selection of persons for appointment as officers in the Senior and Junior Divisions;

(iv)
any other matter which may be referred to it by the Central Government or the State Government or the Director General National Cadet Corps, as the case may be;

(b)
issue directions and tender advice to Officers Commanding units of the Senior Division and to the Director of Public Instruction on the following matters :-

(i)
improvement of training and training facilities for cadets;

(ii)
improvement of discipline in the units;

(iii)
the general welfare of officers and cadets.

[*****]

[Sub-clause (iv) omitted by S.R.O. 249, dated 18th July, 1960, Part II, Section 4, page 141]

[Part XII]

[Added by S.R.O. 118, dated 4th April, 1953, Part II, Section 4, page 123]

Miscellaneous

44.

Power to delegate.

- The Ministry of Defence, Government of India, may by order in writing direct that any power exercisable by it under these Rules may also be exercised by the Director General National Cadet Corps.

45.

[Grant of Honorary rank and wearing of uniform on retirement or Resignation-Officers.

[Added by S.R.O. 311, dated 18th July, 1953, Part 2, Section 4, page 281.]

(1)

An officer of the National Cadet Corps of a State who retires or is permitted to resign his commission after 20 years' service, including service rendered in the Armed Forces, University Officers Training Corps or Indian Territorial Force or Territorial Army, when such service is counted towards his seniority in the National Cadet Corps under rule 26 may be granted an honorary rank in the National Cadet Corp provided that -]

Provided that he is recommended by his Commanding Officer, the Circle Commander and the Director, National Cadet Corps;

(2)

Recommendation accompanied by a statement of services will be forwarded through the usual channel to the Ministry of Defence, Government of India.

(3)

If the Ministry of Defence, Government of India is satisfied that the officer so recommended is suitable, the grant of such honorary rank will be notified in the official Gazette.

(4)

When such an officer is granted an honorary rank by a notification in the official Gazette he is entitled to the style and use of his honorary rank at all times should he so desire.

(5)

The wearing of uniform by such an officer is restricted to the following occasions, namely :-

(a)

Military, Naval or Air Force parades as spectators.

(b)

Military, Naval, Air Force or civil functions for which uniform is prescribed.

(c)

When summoned to an interview by a regular officer of the Armed Forces.

(d)

When attending National Cadet Corps functions:

46.

Power of the Central Government to establish subsidiary organization.

- The Central Government may, from time to time, by general or special order, establish or constitute such organization in the Director of National Cadet Corps as may be considered necessary or desirable in the opinion of the Central Government for carrying out the objects of the Act.

I

(See rules 7, 11, 13, 17, 18 and 21)

Form I

National Cadet Corps Senior Division Enrolment Form I

(See Rules 7 And 11)

Application For Enrolment

1.

What is your name? (in Block Capitals)

1.....

2.

What is your *father's/guardian's name and address ?

2.

Name

?.....

Address

?.....

3.

Are you a citizen of India or a subject of Nepal?

3

?.....

4.

What is your Village, Tehsil or Taluka and District?

4.

Village

?.....

Tehsil

or Taluka

?.....

District

?.....

5.

What is your Post Office?

5

?.....

6.

What is your Railway Station?

6

?.....

7.

What are your educational qualification?

7

?.....

8.

What is your age?

8.

?.....

9.

Have you ever been convicted by a criminal Court, and if so, in what circumstances, and what was the sentence?

9

?.....

10.

In which college are you now studying?

10

?.....

11.

Are you willing to be enrolled under the National Cadet Corps Act, 1948?

11

?.....

12.

In which unit do you desire to be enrolled?

12

?.....

13.

Are you willing to undergo service training as specified in the Act and the rules made thereunder?

13

?.....

14.

Are you willing to serve in the National Cadet Corps until discharged as provided in the Act?

14

?.....

15.

Have you ever previously applied for enrolment under the Act, and if so, with what result?

15

?.....

16.

Have you been dismissed from the National Cadet Corps, the Territorial Army or the Indian Armed Forces?

16

?.....

.....

Signature of applicant

Declaration On Acceptance For Enrolment

I solemnly declare that the answers I have given to the questions in this form are true and that no part of them is false, and that I am willing to fulfil the engagement made.

[Ipromise that I will honestly and faithfully serve my country and abide by the rules and Regulations of the National Cadet Corps and that I will to the best of my ability, attend all parades and camps which I may be required to attend by my Commanding Officer.]

[Substituted by S.R.O. 40, dated 29th January, 1955, Part II, Section 4, page 29]

Form II

National Cadet Corps

Junior Division Enrolment Form

(See Rules 7 and 11)

Application for Enrolment

1. What is your name? (in Block Capitals)

1.....

2. What is your *father's/guardian's name and address ?

2.

Name

?.....

Address

?.....

3. Are you a citizen of India or a subject of Nepal?

3

?.....

4. What is your
Village, Tehsil or Taluka and District?

4.

Village

?.....

Tehsil

or Taluka

?.....

District

?.....

5. What is your
Post Office?

5

?.....

6. What is your
Railway Station?

6

?.....

7. What are your
educational qualification?

7

?.....

8. What is your
age?

8.

?.....

9. In which School
are you now studying?

9

?.....

10. Are you willing
to be enrolled under the National Cadet Corps Act, 1948?

10

?.....

11. Are you willing
to serve in the National Cadet Corps until discharged as provided
in the Act?

11

?.....

12. In which unit
do you desire to be enrolled?

12

?.....

13. Are you willing
to undergo service training as specified in the Act and the rules
made thereunder?

13

?.....

14. Have you ever

previously applied for enrolment under the Act, and if so, with what result?

14

?.....

15. Have you been dismissed from the National Cadet Corps, the Territorial Army or the Indian Armed Forces?

15

?.....

.....

Signature of applicant.

For Minors Only

I solemnly declare that the answers given in this form are true and no part of them is false and that my son/ward is willing to fulfil the engagement made.

I understand my son/ward has no service liability.

.....

Signature of father/guardian

Certified that the applicant understands and agrees to the conditions of enrolment.

For Minors only

Certified that applicant and his father/guardian understand and agree to the conditions of enrolment.

.....

Signature of enrolling officer

To Be Completed By Medical Officer Before Enrolment

I have examined (name)

On (date) and consider him Fit/unfit for enrolment as a Cadet in the National Cadet Corps.

Signature

Designation.....

(Medical Officer)

To Be Used For Extension Of Enrolment

(See rule 13)

A.I agree to extend my enrolment for one year and am willing to fulfil the engagement made.

Signature

Confirmed.

Signature of Commanding Officer

Date from which extension starts.....

B. I agree to extend my enrolment for one year and am willing to fulfil the engagement made.

Signature

Confirmed.

Signature of Commanding Officer

Date from which extension starts

NOTE-This form will be retained in the Unit Headquarters.

[DECLARATIONS]

[Substituted by S.R.O. 277, dated 6th June 1953, Part II, Section 4, page 233]

ON ACCEPTANCE FOR ENROLMENT

Ipromise that I will honestly and faithfully serve my country and abide by the rules and Regulations of the National Cadet Corps and that I will to the best of my ability, attend all parades and camps which I may be required to attend by my Commanding Officer.

.....

Signature of applicant

I solemnly declare that the answers given to the questions in the form are true and that no part of them is false, and my son/ward is willing to fulfil the engagement made.

Ipromise that after the enrolment of my son/ward I will have no claim on authorities for any compensation in the event of an injury or death due to accident during training camps/courses and travelling.

.....

Signature of father/guardian

Certified that applicant and his father/guardian understand and agree to the conditions of enrolment.

.....

Signature of enrolling officer.

Date of enrolment.....

To be Completed By Medical Officer Before Enrolment

I have examined (name) on (date) and consider him fit/unfit for enrolment as a Cadet in the National Cadet Corps.

Signature

Designation.....

(Medical Officer)

To Be Used For Extension Of Enrolment

My son/ward agree to extend his enrolment for one year and is willing to fulfil the engagement made.

.....

Signature of father/guardian

Confirmed.

.....

Signature of Headmaster

Date from which extension starts.....

Note-This form will be retained in the School which the Unit is located.

Form III

National Cadet Corps

Application For Appointment As An Officer

(See rules 17, 18 and 21)

1. What is your

name? (in Block Capitals)

1.....

2. What *is/was

your father's/guardian's name and address ?

2.

Name

?.....

Address

?.....

3. Are you a

citizen of India or a subject of Nepal?

3

?.....

4. What is your

Village, Tehsil or Taluka and District?

4.

Village

?.....

Tehsil

or Taluka

?.....

District

?.....

5. What is your

Post Office?

5

?.....

6. What is your
Railway Station?

6

?.....

7. What are your
educational qualification?

7

?.....

8. What is your
date of birth?

8.

?.....

9. What is your
present appointment?

9

?.....

10. Have you ever
been convicted by a criminal Court, and if so, in what
circumstances, and what was the sentence?

10

?.....

11. Have you ever
served in the Indian Armed Forces, the Reserve, Indian Territorial
Force, Territorial Army, the Indian States Forces or the Nepal
State Army? If so, state in which, the period of service and the
cause or discharge.

11

?.....

12. Are you willing
to be appointed under the National Cadet Corps Act, 1948?

12

?.....

13. In which unit
do you desire to be appointed?

13

?.....

14. Are you willing
to undergo service training as specified in the Act and the rules
made thereunder?

14

?.....

15. Are you willing
to serve in the National Cadet Corps until discharged as provided
in the Act?

15

?.....

16. Have you ever
previously applied for appointment under the Act and if so, with

what result?

16

?.....

17. Have you been

dismissed from the National Cadet Corps, the Territorial Army or
the Indian Armed Forces?

17

?.....

18. Are you willing

to obey the orders of officers placed in command over you and obey
such rules and regulations laid down by the Commanding Officers
when you undergo preliminary training with an Armed Forces unit as
specified in sub-rule (3) of Rule 21?

18

?.....

.....

Signature of applicant

Questions To Be Answered By The Principal Or The Headmaster To Whom An Application Is Made

1.

How long have you known the applicant ?

1

?.....

2. [

(i) Is the applicant a permanent member of your teaching staff ?

[Substituted by S.R.O. 195, dated 14th June, 1952, Part II, Section 4, page 92]

(ii)

Since how long has he been on your teaching staff ?]

2.

(i).....

(ii).....

3.

What is his present job in the *College/School ?

3

?.....

4.

Has he ever served in the University Officer's Training Corps or
the National Cadet Corps ?

(a)

As a cadet

(b) As

an officer

(c) [

If in the National Cadet Corps, state certificate obtained whilst
as a cadet.

[Inserted by S.R.O. 108, dated 23rd March, 1957, Part II, Section 4, page 55]

4

?.....

(a)

?.....

(b)

?.....

(c).....

.....]

5. Whats

games does he play and what is his proficiency at them ?

5

?.....

6.

Has he the requisite physical qualification ?

6

?.....

7.

Do you recommend him for a commission in the National Cadet Corps

?

7

?.....

.....

Signature of Principal/Headmaster

Name of College/School, Town and District

Declarations On Acceptance For Enrolment

I solemnly declare that the answers I have given to the questions in the form are true and that no part of them is false, and that I am willing to fulfil the engagement made.

I undertake that in case after having been commissioned in the Corps, I desire to leave the College/School, in which is located the Unit to which I am posted under rule 23, I shall give 6 month/3 months notice in writing to the principal of my College Headmaster of my School of my intention to leave the College/School.

I understand I have to service liability.

.....

Signature of applicant

Certified that the applicant understands and agrees to the conditions of appointment.

.....

Signature of President of Selection Board

Date of Signature

To BW Completed By Medical Officer

I have examined (name) on (date) and consider him fit/unfit for employment, as an officer in the National Cadet Corps.

Signature

Designation.....

(Medical Officer)

Note-The form will be sent to the Armed Force unit by the Director of Public Instruction when the applicant proceeds to it for preliminary service training. The form, with report on the applicant on the completion of training, will be sent to the Director General, National Cadet Corps Ministry of Defence, Government of India.

II

(See rule 35 and 36)

Rates Of Pay, Honorarium And Allowances Admissible Under Rules 35 And 36

1. Senior Division Officers - (a) Pay of rank as for corresponding ranks of the Armed Forces under sub-rule (1) of rule 35.

(b)

[An allowance of Rs.5 per day of actual attendance at the Annual Training Camp or Cruise, at Combined Cadre and Social Service Camps or Cruise and at authorized courses of Instructions other than pre-commission training in Armed Forces Schools, with Armed Forces Units, provided the officers concerned live, mess and sleep in Camp or in an official mess or on Board Ship as the case may be. Dearness allowance at present admissible to officers will be discontinued.]

[Substituted by S.R.O. 158, dated 23rd April, 1955, Part II, Section 4, page 87]

(c)

Free conveyance or cost of conveyance by rail in 1st Class or by road at fifty paise per mile, to the site of the annual training camp from the college, in which the unit or part thereof to which the officer has been posted, is located. Free conveyance or a similar allowance will be paid for the return journey.

[NOTE -

[Inserted by S.R.O. 521, dated 5th December 1953, Part II, Section 4, page 399]

If an officer is ordered to proceed to the site of an annual training camp during any vacation, free conveyance shall be provided, or the cost of such conveyance shall be re-imbursed, to such an officer from the place of his residence to the place of the annual training camp.]

(d)

[One 1st class rail fare by shortest route, or cost of actual expenditure incurred in traveling by road between stations not connected by rail, subject to the limitations laid down in the officer, while proceeding on an authorized attachment for training to the Armed Forces School, Armed Forces Unit, or the site of the Combined Cadre and Social Service Camp from the town in which the College providing the unit or part thereof is located and to which the officer has been posted. A similar allowance will be paid for the return journey.

NOTE-if an officer is ordered to proceed on such an attachment during vacation this traveling allowance shall be paid from his place of residence.]

[Substituted by S.R.O. 158, dated 23rd April, 1955, Part II, Section 4, page 87]

(e)

Daily allowance at rates specified below, shall be paid to an officer undertaking a journey under sub-para (c) or (d), from the time the journey begins to the time it ends for each of the onward and return journeys; except that no daily allowance shall be admissible for journeys of less than 6 hours and half the daily allowance shall be admissible for journeys exceeding 6 hours but not exceeding 12 hours, while for journeys of longer duration full daily allowance shall be admissible for every 24 hours. For parts of 24 hours in excess of 24 hours the method of calculation adopted will be the same; as that adopted for journeys of less than 24 hours duration.

By rail : Rs. 10 Per day.

By road : Rs. 5 Per day.

NOTE- In cases of journey by road, actual expenses referred to in para 1 (d) and in case where daily allowance also is admissible under this sub-paragraph actual expenses plus D.A. shall be limited to road mileage allowance at the rate of fifty paise per mile.

(f)

Whilst these officers are required to perform a journey and halt at outstation for purposes other than those mentioned above, they will be entitled to T.A. and D. A. as admissible to corresponding ranks of officers of the Armed Forces under existing regulations.

2. Junior Division Officers. - (a) Pay of rank under sub-rule (2) of rule 35 as follows:-

Rs.

A

P

Third Officer

130

0

0 p.m.

Second Officer

170

0

0 p.m.

First Officer

220

0

0 p.m.

Chief Officer

290

0

0 p.m.

NOTE-The above rates of Payu include a sum of Rs.40 on account of ration allowance.

(b)

Honorarium at the following rates under sub-rule (3) of rule 35 :-

Rs.

A

P

Third Officer

90

0

0

Second Officer

130

0

0

First Officer

180

0

0

Chief Officer

250

0

0

(c)

[An allowance of Rs.5 per day of actual attendance at Annual Training Camp or Cruise, at the Combined Cadre and Social Service Camp and at authorized Courses of Instructions other than pre-commission training in the Armed Forces Schools and with Armed Forces units provided the officers concerned live, mess and sleep in Camp or in an Official mess or on Board Ship as the case may be. Dearness allowance at present admissible to officers will be discontinued.]

[Inserted by S.R.O. 158, dated 23rd April, 1955, Part II, Section 4, page 87]

(d)

[Free conveyance or cost of conveyance, by rail in 1st Class or road at six annas per mile, to the site of the annual training camp from the School in which the unit or part thereof, to which the officer has been posted, is located. Free conveyance or a similar allowance will be paid for the return journey.]

[Inserted by S.R.O. 531, dated 5th December, 1953, Part II, Section 4, page 399]

NOTE-If an officer is ordered to proceed to the site of an annual training camp during any vacation, free conveyance shall be provided, or the cost of such conveyance shall be reimbursed, to such an officer from the place of his residence to the place of the annual training camp.

(e)

[One 1st Class rail fare by the shortest route, or cost of actual expenditure incurred in traveling by road between stations not connected by rail subject to the limitations laid down in the note to sub-paragraph (f) will be admissible to the officer while proceeding on an authorised attachment to the Armed Forces School, Armed Forces Unit, or to the site of the Combined Cadre and Social Service Camp from the town in which the school providing the unit or part thereof is located, and to which the officer has been posted. A similar allowance will be paid for the return journey.]

[Substituted by S.R.O. 134, dated 1st May, 1956, Part 2, Section 4, Page 79.]

NOTE-If an officer is ordered to proceed to such an attachment during vacation this traveling allowance shall be paid from his place of residence.

3. For journeys between Calcutta and Agartala an officer may travel by air instead of by the surface route and he shall be paid the actual air fare.

(f)

Daily allowance, at rates specified below, shall be paid to an officer undertaking a journey under sub-para (d) or (e),

from the time the journey begins to the time it ends for each of the onward and return journeys, except that no daily allowance shall be admissible for journeys of less than 6 hours and half the daily allowance shall be admissible for journeys exceeding 6 hours but not exceeding 12 hours, while for journeys of longer duration full daily allowance shall be admissible for every 24 hours. For parts of 24 hours in excess of 24 hours the method of calculation adopted will be the same as that adopted for journeys of less than 24 hours duration.

By rail : Rs.5 Per Day.

By Road : Rs.4 Per Day.

NOTE-In cases of journey by road expenses referred to in para 2 (e) and in cases where daily allowance also is admissible under this sub-paragraph actual expenses plus D.A. shall be limited to road mileage allowance at the rate of six annas per mile.

(g)

Whilst these officers are required to perform a journey and halt at out station for purposes other than those mentioned above, they will be treated as Class II officers of the State Government for purposes of grant of daily and Travelling allowance.

3. Cadets - (a) An allowance of Rs. 2 per day for every day of actual attendance at annual training camp in all the States (except in the States of Assam, Manipur and Tripura where an allowance of Rs. 2-8-0 per day to actual attendance at such camp shall be admissible), provided the cadets concerned live, mess and sleep in camp.

(b)

[Such allowance as may be specified by the State Government, when undergoing further service training under sub-rule c (2) of rule 34 and rule 34-A.]

[Substituted by S.R.O. 158, dated 23rd April, 1955, Part II, Section 4, page 87]

(c)

Free conveyance or cost of conveyance, by rail in Third Class or by road at two annas six pies per mile, to the site of the annual training camp or the place of further service training, from the college or school, in which the unit or part thereof to which the cadet has been appointed is located. Free Conveyance or a similar allowance will be paid for the return journey.

[NOTE-If a cadet is ordered to proceed to the site of annual training camp during vacation, free conveyance shall be provided, or the cost of such conveyance shall be reimbursed to such cadet, from the place of his residence to the place of the annual training camp.]

[Added by S.R.O. 158, dated 23rd April, 1955, Part II. Section 4, page 87]

(d)

[One Third Class rail fare by the shortest route or cost of actual expenditure incurred in travelling by road between stations not connected by rail subject to the limitation laid down in the note to sub-paragraph (e) of paragraph 3, will be admissible to cadet while proceeding to an Armed Forces Unit or Combined Cadre and Social Service Camp for further training under sub-rule (2) of rule 34 and rule 34 A, from the town in which the college/school providing the unit of part thereof to which a cadet has been appointed, is located. A similar allowance will be paid for the return journey.

NOTE-If a cadet is ordered to proceed on such an attachment during vacation this travelling allowance shall be paid from his place of residence.]

[Substituted by S.R.O. 158, dated 23rd April, 1955, Part II, Section 4, page 87]

(e)

Daily allowance at rates specified below, shall be paid by a cadet undertaking a journey under sub-para (c) or (d), from the time the journey begins to the time it ends for each of the onward and return journeys, except that no daily allowance shall be admissible for journeys of less than 6 hours and half the daily allowance shall be admissible for journeys exceeding 6 hours but not exceeding 12 hours, while for journey of longer duration full daily allowance shall be admissible for every 24 hours. For parts of 24 hours in excess of 24 hours method of calculation adopted will be the same as that adopted for journeys of less than 24 hours duration.

By rail : Rs.4.00 Per day.

By road : Rs.3.00 Per day.

NOTE-In cases of journey by road, actual expenses referred to in para 3 (d) and in cases where daily allowance also is admissible under this sub-paragraph actual expenses plus D.A. shall be limited to road mileage allowance at the rate of two annas per mile.

3.

A The allowances for [all types of camps]

[Substituted by S.R.O. 130, dated 4th May, 1959, Part II, Section 4, page 57]

for all officers and cadets, posted or appointed to a unit, shall be paid in the case of a Senior Division unit to the Commanding Officer, and in the case of a Junior Division unit to the officer placed in command of that unit.

4. Persons Selected for Pre-Commission Training - (a) In the case of persons selected for training as officers for the Senior Division, an allowance of Rs.10.00 per day, and in the case of persons selected for training as officers for the Junior Division an allowance of Rs.6.00 per day, for every day attachment to the Armed Forces unit or to any training establishment of National Cadet Corps including intervening Sundays and holidays:

(b)

A person selected for training as officer for the Senior Division and a person selected for training as an officer for the Junior Division will be entitled to one 1st Class rail fare, by the shortest route, or actual expenditure incurred in traveling by road between stations not connected by rail, subject to the limitation laid down in the note to sub-paragraph (c) of paragraph 4 while proceeding or preliminary service training to an Armed Forces unit, from the town in which the college or school to which the person belongs is located. A similar allowance will be paid for the return journey.

NOTE-If a Person is ordered to proceed on such preliminary military training during vacation, this traveling allowance shall be paid from his place of residence

(c)

Daily allowance, at the rate specified below, shall be paid to a person, selected for training as an officer of the Senior and Junior Division undertaking a journey under sub-para (b), from the time the journey begins to the time it ends for each of the onward and return journey, except that no daily allowance shall be admissible for journeys of less than 6 hours and half the daily allowance shall be admissible for journeys exceeding 6 hours but not exceeding 12 hours, while for journeys of longer duration full daily allowance shall be admissible for every 24 hours. For parts of 24 hours in excess of 24 hours the method of calculation adopted will be the same as that adopted for journeys of less than 24 hours duration.

By rail : Rs.5 per day.

By road : Rs.3.00 per day.

NOTE-In cases of journey by road, actual expenses referred to in para 4 (b) and in cases where daily allowance is admissible under this sub-paragraph actual expenses plus D.A. shall be limited to road mileage allowance at the rate of six annas per mile.

(d)

[The outfit allowance referred to in clause (c) of sub-rule (1) of rule 35 shall be placed at the disposal of the respective Directors, National Cadet Corps of the officer-cadets selected for pre-commission training. The Directors, National Cadet Corps shall take necessary action to equip the officer-cadets with the items of uniform required. The unexpended portion of this allowance shall be required. The unexpended portion of this allowance shall be :-

(i)

Handed over to the officer-cadets on their being granted a commission:

Or

(ii)

Refunded to the State in case they are not granted a commission.

On commissioning, articles of clothing and necessities purchased from this allowance shall become the personal property of the NCC Officers. Such articles shall, however, be withdrawn from the officer-cadets who resign from the National Cadet Corps, or who are removed or withdrawn prior to commissioning. The articles withdrawn shall be auctioned and the proceeds credited to the States.]

[Inserted by S.R.O. 331, dated 27th August, 1955, Part II, Section 4, page 195]

5. Officers and Cadets when travelling to and from their camps will be sanctioned travelling allowance amounting to actual expenditure incurred at concessional rates as laid down in serial number 6 of Annexure to rule 114 of the Indian Railway Conference Association, Coaching Tariff No.16.

III

(See rule 5, 6, 16 and 27)

1.

Prohibition to Membership of Organisations

(See rule 5 (g), 6 (f) and 16 (g))

Any communal organisation or political organization or an organisation believing in violence or communal disharmony.

2.

Ranks and Scales of Substantives promotions of Officers

(See rule 27)

(a)

Senior Division Officers-

(i)

Army Wing :-

On being first commissioned -2nd Lieutenant.

After 3 years commissioned service-- Lieutenant.

After 8 years commissioned service--Captain.

After 15 years commissioned service-Major

(ia)

[Naval Wing :-

On being first commissioned Sub Lieutenant.

After 8 years commissioned service-- Lieutenant.

After 15 years commissioned service-- Lieutenant Commander.]

[Inserted by S.R.O. 262, dated 16th August, 1952, Part II, Section 4, page 115]

(ii)

Air Wing :-

On being first commissioned-Pilot Officer.

After 3 years commissioned service-Flying Officer

After 8 years commissioned service-Flight Lieutenant.

After 15 years commissioned service-Squadron Leader

(b)

(i)

Junior Division Officers-

On being first commissioned-Third Officer.

After 3 years commissioned service-Second Officer

After 8 years commissioned service-First Officer

After 15 years commissioned service--Chief Officer

(c)

Promotions to the higher rank shall be made provided :-

(i)

the officer is considered fit to hold that rank;

(ii)

a vacancy in the higher rank exists in the unit or part thereof to which the officer has been appointed.

(d)

All promotions shall be made by the Ministry of Defence, Government of India, on the recommendation of State Government.

(e)

[Officers appointed to Medical units of the National Cadet Corps shall be granted the rank of Lieutenant in the Army Wing and of Sub-Lieutenant in the Naval Wing direct on their first Commissions, with three years seniority for purpose of promotions.]

[Substituted by S.R.o. 297, dated 20th August, 1957, Part II, Section 4, page 155]

Related AI tags, queries and research notes

Translation